



EAGLE MOUNTAIN CITY COUNCIL SPECIAL SESSION MEETING MINUTES

April 23, 2024, 3:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

3:00 P.M. WORK SESSION - CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Jared Gray, Rich Wood, and Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Interim City Manager; Fionnuala Kofoed, Assistant City Administrator/City Recorder; Cliff Strachan, Director of Legislative Affairs; Marcus Draper, City Attorney; Kimberly Ruesch, Finance Director; Tyler Maffitt, Communications Manager; Angela Valenzuela, Human Resource Manager; Alex Palacios, Finance Manager; Terrence Dela Pena, Finance/Management Analyst; Brandon Larsen, Planning Director; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager/Parks and Recreation Manager; Jeff Weber, Fleet and Facilities/Operations Director; Brad Hickman, Public Works Director; Michele Graves, Library Director; Eric McDowell, Chief Deputy and Bailey Ensign, Digital Communications Specialist.

1. DISCUSSION OF PROPOSED BUDGET

1.A. DISCUSSION – Proposed Budget

Mayor Westmoreland called the meeting to order at 3:06 p.m.

Kimberly Ruesch, Finance Director presented the item.

Capital Projects Fund for Fiscal Year 2025:

Administration:

- Land Acquisition City Hall Expansion - \$500,000
- Land Acquisition Alpine School District - \$1,150,000
- Land Acquisition for Firefly school site- \$2,500,000
- City Hall - \$900,000

Facilities:

- Public Works Yard Improvements - \$1,050,000

Parks:

- City Center Streetscapes - \$50,000
- SilverLake Amphitheater Improvements - \$50,000
- City Center Median Landscaping - \$500,000
- Nolen Park Improvements - \$80,000
- Rodeo Arena Lights and Equipment - \$80,000
- Ranches Trail – Pony Express Parkway to Cory B. Wride Memorial Highway - \$50,000
- Observatory Walden Park - \$262,914
- Recreational Trail – Regional - \$50,000
- Pony Express Regional Park Phase 1 - \$150,000
- Property Acquisition - \$1,000,000

Streets:

- Mid Valley Road Extension - \$4,529,554
- High T Intersection - Campus Drive/Ranches Parkway - \$1,700,000

Wastewater:

- Type 1 Tertiary Treatment - \$4,300,000
- Treatment Plant Expansion Phase 2 - \$700,000
- Holding Ponds - Repair Work - \$680,000
- Additional Fan Press and Conveyance - \$710,000
- Gravity Sewer Line Old Airport Road - \$1,000,000
- Drum Screen Replacement and Increase Capacity - \$20,000
- Land Acquisition - \$108,500

Water:

- Well 7 Unity Pass Phase 2 - \$300,000
- 2.5 MG Tank - City Center - \$640,000
- Upgrade Well 5 - \$500,000
- Hidden Canyon Distribution Line - \$125,000

One-Time Expenses for Fiscal Year 2025:

Cemetery:

- Storage Shed & Pad - \$10,000

Communications:

- Marketing Initiative - \$18,000

Events:

- Tuff Shed - \$10,000
- Ford Explorer - \$40,000

Facilities:

- Branding Update - office spaces and cubicle plaques - \$12,000

Library:

- Photo Copier - \$8,000

Parks:

- GIS Data Collection Unit - \$15,900
- Kubota Utility Vehicle - \$37,000
- 2 - 72" Brushcat mowing decks - \$16,000
- Branding Update - signs and public art project installation - \$296,650

Recorder's Office:

- Photo Copier - \$8,000

Recreation:

- Laser Grader - \$7,500

Senior Center:

- Van-15 Passenger - \$125,000

Streets:

- 72" Brushcat Mowing Deck - \$8,000
- 72" Sweeper Bucket (attachment to Skidsteer) - \$6,000
- Concrete Trailer - \$15,000
- Concrete/Asphalt Scarifier - \$12,000
- Mini Track Loader - \$33,000
- Hydraulic Breaker Attachment - \$9,000
- Dump Truck - Snow Plow and Salt Spreader - \$215,951

Storm Water:

- Metal Canopy - \$20,000

Wastewater:

- Finish fencing around the wastewater treatment plant - \$120,000
- Gearboxes and motors - \$93,612
- Trailer-mounted High Pressure Washer - \$30,000
- F-550 Truck - \$175,000

Water:

- PLC and Screen (Well #2) - \$20,000
- 5th Wheel Trailer - \$31,000
- 10-Wheeler Dump Truck - \$225,000

Water/Wastewater/Storm:

- Hydraulic Asphalt collar saw - \$60,000

Discussion about funding allocation requests and City Council direction to staff:

- Public facilities land acquisition and concept design funding;
- Direction to consolidate funds for public safety and City Hall land acquisition;
- Master Facilities Plan progress and timeline;
- Plans and funding for park, amphitheater, and observatory maintenance and upgrades;
- The scope of the public works yard improvements;
- Improvements and amenities for the SilverLake Amphitheater such as adding bathroom and storage facilities, to enhance usability until a new one can be built;
- The timetable and scale of improvements to Nolan Park, including filling holes in the grass, adding playground equipment and amenities, and improving programming;
- Updates to Municipal Code to make asphalt the standard material for trail surfaces;
- Improving the rodeo arena, providing storage for infrequently used large items, and reusing the light poles scheduled for replacement;
- Designation of a future location for the rodeo grounds before determining temporary improvements;
- Pony Express Parkway and Eagle Mountain Boulevard roundabout removal using sales taxes to be reimbursed by Mountainland Association of Government (MAG);
- Budget shortfall for the Type 1 Tertiary Treatment line item and consideration of using a bond refund or other bond resources to fully fund the project;
- Status and funding allocation for the connection of Old Airport Road to the Lone Tree subdivision;
- Establishment of park and ride locations;
- Direction to increase the City allocation from \$250,000 to \$500,000, seek MAG funding, and work with the County to pave and provide connectivity to 8000 North;
- Direction to finalize the alignment for 8000 North, modify the Future Land Use and Transportation Plan accordingly, and work with landowners to secure right-of-way;
- State funding and a State Road designation for Mid Valley Road;
- Cemetery equipment use and storage; anticipated staffing, future phases, and maintenance increases resulting from growth; and continuing evaluation to ensure that fees meet expenses;
- Departmental use and the condition of City utility vehicles and future needs in relation to the variance in annual maintenance standards for open space and parks;
- The approximately \$300,000 already invested in the new City website and rebranding and the next phase planned for the fiscal year, particularly the \$100,000 allotment to the public art component;

- The understanding of the previous Councilmembers of what was contemplated in the phasing and full rebranding for the City; and
- Direction to staff to present the plan for the individual phases and full rebranding plan during a future meeting.

Mayor Westmoreland recessed the meeting at 4:44 p.m.

4:30 P.M. SPECIAL CITY COUNCIL MEETING – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Jared Gray, Rich Wood, and Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Interim City Manager; Fionnuala Kofoed, Assistant City Administrator/City Recorder; Cliff Strachan, Director of Legislative Affairs; Marcus Draper, City Attorney; Kimberly Ruesch, Finance Director; Brandon Larsen, Planning Director; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; and Eric McDowell, Chief Deputy.

2. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 4:53 p.m.

Councilmember Burnham led the Pledge of Allegiance.

3. ORDINANCE/PUBLIC HEARING

- 3.A. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapters 15.95 International Code and 16.60 Building Permits.

Items 3.A. and 4.A. were presented and discussed concurrently.

Planning Director Brandon Larsen presented a proposal to update Eagle Mountain Municipal Code 15.95 and 16.60, related to the International Fire Code, International Building Code, and building permits. Although the City has enforced the International Building Codes adopted by the State of Utah, it should be clarified in Municipal Code which codes are being enforced. This gives the City extra points towards better fire insurance rates for residents and businesses. The codes also need to be updated to align with State Code related to construction timing and building permits. This proposal also deals with information related to building permit fee calculations.

Staff proposes simplifying Municipal Code standards through:

- Reference to the adoption of the State Construction and Fire Code, rather than listing out every international code
- Reference to the adoption of current codes
- Reference to current building permit fees in the Consolidated Fee Schedule
- Reference to the current Building Valuation Data (BVD) table for building permit fee calculation
- Reference to current International Fire Code Appendices

Staff proposes improving clarity on the following standards:

- Building permit site plan requirements
- Owner/builder or sole owner of property situations

- The signing and stamping of plans by engineers
- When a certificate of occupancy can be issued

Discussion explained that the specification for a structural engineer is being amended to engineer in EMMC 16.60.040(7) to align with State Code requirements and due to Utah having a professional rather than structural engineering license.

Councilmember Wood suggested adding a requirement that a map with a pin indicating the proposed building location be submitted with building permit applications to assist in assessing potential conflicts of surrounding uses. He recommended that the geotechnical report include a soil stability test and a reference requiring approval from the Department of Veterans and Military Affairs for projects within 5,000 feet of Camp Williams.

Mayor Westmoreland opened the public hearing at 5:13 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Wood moved to approve an ordinance of Eagle Mountain City, Utah, amending the Eagle Mountain Municipal Code Chapters 15.95 International Code and 16.60 Building Permits with the following changes:*

1. *Include a reference to the requirements in EMMC 17.61 Land Use Compatibility with Military Use to EMMC 16.60;*
2. *Amend EMMC 16.60.040 to require a map indicating the location of the site for the building permit; and*
3. *Add the requirement for a soil stability test to EMMC 16.60.040(8).*

Councilmember Wright seconded the motion.

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

4. LEGISLATIVE ITEMS

4.A. RESOLUTION/PUBLIC HEARING - A Resolution of Eagle Mountain City, Utah Amending Eagle Mountain City's Consolidated Fee Schedule for Building Permit Fees

Mr. Larsen presented a proposal to update the Building Permit Fee table. He suggested updates to the Total Valuation and Fee columns and recommended adding a new note stating that the current International Building Code's Building Valuation Data (BVD) table will be used to generate building permit fees. This change aims to simplify the calculation of building permit fees as the City transitions to the OpenGov electronic permitting system.

Discussion ensued regarding the total valuation calculation and verified the correct numbers for the permit fee schedule.

Mayor Westmoreland opened the public hearing at 5:15 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Wood moved to approve a resolution of Eagle Mountain City, Utah amending Eagle Mountain City's Consolidated Fee Schedule for building permit fees. Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

20. ADJOURNMENT

MOTION: *Councilmember Gray moved to adjourn at 5:16 p.m. Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

The meeting was adjourned at 5:16 p.m.

Approved by the City Council on May 7, 2024


Fionnuala B. Kofoed, MMC
City Recorder

